

## 21STCV41674 21STCV41674

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#10 - HOLLY SLOCUM REYES, et al. vs SOUTH PASADENA CARE CENTER

MOTION

FOR SUMMARY JUDGMENT / ADJUDICATION

South Pasadena Care Center, LLC filed a motion seeking summary judgment or, alternatively, summary adjudication.

The First Amended Complaint pleads four causes of action:

(1) wrongful death/elder abuse, (2) elder abuse, (3) violation of Health and Safety Code section 1430(b), and (4) wrongful death/negligence. The FAC alleges that Robert Slocum, Sr. resided at South Pasadena Care Center from about March 2020 to August 14, 2020, and that he died on or about August 15, 2020. (FAC, ¶¶ 27, 57-59.) The FAC further alleges, among other things, understaffing, failure to provide food and nutrients, failure to implement infection-control and safety measures, and failure to observe and report changes in condition.

Request for Judicial

Notice

Defendant requests judicial

notice of the following in support of their motion:

1. Covid statistics are from the World Health

Organization, website: <https://data.who.int/dashboards/covid19/deaths>.

2. Covid statistics from the Covid Project

Tracking website: <https://covidtracking.com/data/national>.

RJN 1 is GRANTED and

RJN 2 is DENIED. The Court finds a World

Health Organization website can include facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (Evid. Code, § 452(h).) The same cannot be said for covidtracking.com, which is a website created by a volunteer organization launched from the publication, The Atlantic.

Plaintiffs request  
judicial notice of the following:

Exhibit 1:  
Conversion Weights (Page 3 - 1 kg = 1000 mg = 2.2 lb = 35 oz)  
Exhibit 2: February  
2020 – March 2020 calendar.

RJN 1 and 2 are  
GRANTED. (Evid. Code, § 452(h).)

#### Evidentiary Objections

Plaintiffs filed objections to the declarations of Peter E. Theophilos, Daniel J. Bressler, M.D., and Sandra Higelin, R.N., and to Exhibits C and G attached to Defendants' notice of lodgment. The Court has considered the parties' evidentiary submissions to the extent necessary to disposition. Because the motion is denied even considering SPCC's moving and reply evidence, no evidentiary rulings are necessary for purposes of this order.

#### Tentative Ruling

Defendant South Pasadena Care Center, LLC's motion for summary judgment, or in the alternative summary adjudication, is DENIED.

#### Legal Authority and Analysis

"A party may move for summary judgement in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 473c subd. (a)(1).) Pursuant to Code of Civil Procedure section 437c(f)(1), a party may properly seek summary adjudication of one or more

causes of action, one or more affirmative defenses, the issue of punitive damages or the issue of duty. (Code Civ. Proc., § 437c(f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim of damages or an issue of duty.” (Id.)

Where a defendant

seeks summary judgment or adjudication, he must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c(o)(2).) A defendant may satisfy this burden by

showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union

Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Id.)

A defendant moving

for summary judgment bears an initial burden of showing that the plaintiff’s causes of action have no merit, and the defendant meets this burden by making a prima facie evidentiary showing that one or more elements of each cause of action cannot be established, or there is a complete defense to each cause of action.

(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849-851; Code Civ. Proc., § 437c, subd. (p)(2).) If the defendant meets its initial burden, the burden shifts to the plaintiff to produce evidence of a triable issue of material fact concerning the challenged element or defense. (Aguilar, supra, 25 Cal.4th 849-851; Code Civ. Proc., § 437c, subd. (p)(2).) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, supra, 25 Cal.4th at 850.) Throughout the motion, however, the moving party bears an overall burden of persuasion that there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law. (Id. at 850 & fn. 11.)

South Pasadena Care Center, LLC (“SPCC”) moves for summary judgment. In the alternative, the motion notice seeks summary adjudication of eight issues, including: Issue One (first cause of action for wrongful death/elder abuse), Issues Two through Five (second cause of action for elder abuse, including abuse/neglect, recklessness, causation, and corporate

ratification), Issue Six (third cause of action for violation of patient rights under Health and Safety Code section 1430(b)), Issue Seven (wrongful death), and Issue Eight (punitive damages).

The opposition argues that the motion exceeds the page limit and fails to negate all theories of liability and causation. In reply, SPCC argues its expert declarations address standard of care and causation, that Plaintiffs submitted no contrary medical expert declaration, and that the Court should consider the opening memorandum even though it exceeded the page limit. (Reply, pp. 3-4.) The Court has considered the overlength memorandum and declines to deny the motion on that basis alone.

Generally, Plaintiffs' separate statement disputes Defendant's factual assertions and expert conclusions, and then adds facts directed to the same noticed issues. The Court will determine whether SPCC's cited facts are established and undisputed.

#### Summary Judgment

Under *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, a moving defendant bears the initial burdens of production and persuasion on summary judgment. Significantly, as to each claim as framed by the complaint, the motion must respond by establishing a complete defense or otherwise showing there is no factual basis for relief on any theory reasonably contemplated by the opponent's pleading. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal. App. 5th 653, 661.) Courts liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party. (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) Measured against that standard, SPCC has not carried its initial burden for summary judgment.

The noticed issues show SPCC sought to dispose not only of entire causes of action, but also of distinct theories—abuse or neglect, recklessness, causation, ratification, statutory patient-rights violations, wrongful-death breach and causation, and punitive damages. Yet the separate-statement record presented to the Court is not a clean issue-by-issue negation of those theories. Instead, SPCC relies substantially on global factual assertions and expert conclusions that Plaintiffs dispute in their responsive separate statement and through their evidentiary objections.

Plaintiffs also correctly note the governing rule: if the moving defendant's evidence does not itself support judgment, the motion must be denied without shifting the burden. (Opp., pp. 10-11; Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose (2009) 174 Cal.App.4th 339, 354 ["Where the evidence submitted by a moving defendant does not support judgment in his favor, the court must deny the motion without looking at the opposing evidence, if any, submitted by the plaintiff."].) SPCC's own issue-framing and separate-statement presentation do not establish, as a matter of law, that all triable factual disputes have been eliminated across all the issues noticed.

Therefore, the Court turns to the individual requests for summary adjudication.

#### Summary Adjudication

To the extent Issue One argues the first cause of action is "subsumed" by the second, and Issue Seven seeks adjudication of wrongful death for lack of breach or causation, the request is denied. The notice expressly frames Issue One as a redundancy argument and Issue Seven as a wrongful-death challenge. But wrongful death and survival claims are legally distinct: wrongful death is a separate statutory claim for the heirs' own losses, while a survival claim passes the decedent's own cause of action to the personal representative or successor in interest. (Code Civ. Proc., §§ 377.30, 377.60.) SPCC therefore is not entitled to adjudication of Issue One on the theory that the first cause of action disappears merely because it is redundant, superfluous, and subsumed by the second cause of action. Plaintiffs also plead a survival elder-abuse claim. SPCC's separate statement showing also does not eliminate triable issues on wrongful death breach and causation.

To the extent Issues Two through Five seek to adjudicate the second cause of action as to abuse or neglect, recklessness, causation, and ratification, those requests are likewise denied. The notice separately seeks adjudication of each of those components. Under Welfare and Institutions Code section 15657, and as explained in *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 781-783, the claim turns on custodial neglect and willful misconduct, not merely ordinary professional negligence. SPCC's showing, however, is not a targeted undisputed-facts showing negating custodial neglect theories; it is principally a non-treating expert presentation that care was appropriate and

death resulted from underlying illness. That does not eliminate triable disputes over whether custodial duties were withheld or inadequately performed, and it therefore does not establish the absence of triable fact on abuse/neglect, recklessness, causation, or ratification.

Plaintiffs' separate statement responds to SPCC's separate statement and disputes SPCC's factual showing from the outset. Also, Plaintiffs' opposition argues that the motion does not address all theories of liability, that the proffered material facts are disputed or internally conflicting, and that the expert declarations rely heavily on Exhibit C to the notice of lodgment. Plaintiffs also filed written evidentiary objections to the Theophilos, Bressler, and Higelin declarations and to the lodged records. Defendants, in turn, acknowledged in their response to those objections that, when the motion was filed, affidavits authenticating records from South Pasadena Medical Center, Antelope Valley Medical Center, and Alhambra Hospital Medical Center had been inadvertently omitted and were later supplied with reply papers. (Reply, p. 6.) That is not the kind of clean, undisputed evidentiary record that shifts the burden on a summary judgment motion.

Issue Six fails for similar reasons. SPCC argues that Dr. Bressler "demonstrates that [the decedent's] rights were not in fact violated." (Motion, p. 34.) SPCC also seeks adjudication of the section 1430(b) claim based on UMF Nos. 5-51 and 104-145. (Motion, p. 35.) But Health & Safety Code section 1430(b)(1)(A) expressly authorizes a resident's personal representative or successor in interest to sue the facility licensee for violations of rights set forth in Title 22 or any other right provided by federal or state law or regulation, and for violations occurring before March 1, 2021 provides statutory damages of up to \$500, plus costs and attorney's fees, and possible injunctive relief. SPCC's motion argues both that (1) there is no evidence of a rights violation and (2) no remedies are available under section 1430(b). (Motion, p. 34.) The latter contention is incorrect on the face of the statute, and the former does not negate the full scope of the statutory and regulatory rights Plaintiffs invoke. Therefore, SPCC has not shown entitlement to adjudication of Issue Six.

To the extent SPCC seeks summary adjudication of Issue Eight for punitive damages, that request is also denied. Typically, Code of Civil Procedure section 425.13(a) applies to punitive damages claims arising out of the professional negligence of a health care provider, as the statute requires malpractice cases to comply with specific pleading requirements. However, in *Covenant Care*, supra, 32

Cal.4th at page 781, the Supreme Court held that Code of Civil Procedure section 425.13 does not apply to Elder Abuse Act causes of action seeking section 15657 remedies, as seen here. Given the triable issues identified above as to the underlying elder abuse, section 1430(b), and wrongful death theories, and given the motion's failure to isolate any punitive issue on an undisputed factual record, summary adjudication of punitive damages is not warranted.

Unless waived by the parties, Moving Party is to give notice.